

CHAPTER 4

An Act to provide for increasing the number of puisne judges of the High Court and the number of judges of county courts. [23rd May 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Increase of number of puisne judges of the High Court.
15 & 16 Geo. 5. c. 49.
7 & 8 Geo. 6. c. 9.
12, 13 & 14 Geo. 6. c. 62.

1. The number of puisne judges of the High Court who may be appointed under the Supreme Court of Judicature (Consolidation) Act, 1925, shall be increased by six; and accordingly—

(a) subsection (1) of section two of that Act, as amended by the Supreme Court of Judicature (Amendment) Act, 1944, and by section forty-nine of the Patents and Designs Act, 1949; and

(b) subsections (1) and (2) of section one of the said Act of 1944, as amended by the said section forty-nine;

shall have effect as if, for the word “thirty-three”, wherever that word occurs, there were substituted the word “thirty-nine”.

Increase of number of judges of county courts.
24 & 25 Geo. 5. c. 53.

2. The number of judges of county courts who may be appointed under the County Courts Act, 1934, shall be increased by five; and accordingly paragraph (b) of the proviso to subsection (1) of section four of that Act shall have effect as if, for the word “sixty”, there were substituted the word “sixty-five”.

Short title.

3. This Act may be cited as the High Court and County Court Judges Act, 1950.

CHAPTER 5

Newfoundland (Consequential Provisions) Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. Cesser of effect of certain enactments as to Newfoundland.
 2. Amendment of British Nationality Act, 1948, as to potential citizens of Newfoundland.
 3. Power to make further adaptations by Order in Council.
 4. Short title.
- Schedule—Enactments Repealed.

An Act to provide for repeals and amendments of enactments consequential on Newfoundland's becoming part of Canada. [23rd May 1950.]

WHEREAS by virtue of the Terms of Union between Canada and Newfoundland set out in the Schedule to the British North America Act, 1949, and confirmed by section one of that Act, Newfoundland has become part of Canada:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The following enactments shall cease to have effect to the following extent, that is to say—

The Colonial Stock Act, 1934, as to stock issued by the Government of Newfoundland;	Cesser of effect of certain enactments as to Newfoundland.
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The Ships and Aircraft (Transfer Restriction) Act, 1939, so far as that Act extends to Newfoundland, and, so far as that Act extends to any other country or territory, as to aircraft registered in Newfoundland;

Section fourteen of the Trading with the Enemy Act, 1939, as to Newfoundland; and

Subsection (1) of section nine of the Merchant Shipping Act, 1948, as to Newfoundland;

and accordingly the enactments specified in Part I of the Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Part.

(2) The enactments specified in Part II of the Schedule to this Act, being either—

(a) enactments which contain references both to Canada and to Newfoundland having like effect as to each, and in which the references to Newfoundland became superfluous when Newfoundland became part of Canada, or

(b) enactments which are expressed to operate in relation to any Dominion within the meaning of the Statute of Westminster, 1931, with an exception for Newfoundland, and in which the excepting words became inoperative when Newfoundland became part of Canada,

shall, for the purpose of removing the words so becoming superfluous or inoperative, be repealed to the extent mentioned in the third column of that Part.

(3) In the definition of the expression "Dominion" in Regulation one hundred of the Defence (General) Regulations, 1939 (which defines that expression as meaning any Dominion within the meaning of the Statute of Westminster, 1931, with an exception for Newfoundland) the words "except Newfoundland" shall be repealed, so, however, that the repeal thereof shall not affect the operation of the said Regulations as respects anything done or omitted to be done before Newfoundland became part of Canada.

Amendment
of British
Nationality
Act, 1948, as
to potential
citizens of
Newfoundland.

2. For the purposes of the British Nationality Act, 1948—

(a) a person who, by virtue of subsection (7) of section thirty-two of that Act, was deemed to be at the date of the commencement of that Act potentially a citizen of Newfoundland shall be deemed to have been at that date potentially a citizen of Canada and not potentially a citizen of Newfoundland ; and

(b) in relation to such a person, a citizenship law shall, notwithstanding the Citizenship Law (Canada) Order, 1948, made under subsection (8) of the said section thirty-two, be deemed not to have taken effect in Canada until the first day of April, nineteen hundred and forty-nine (being the date mentioned in section forty-six of the enactment of the legislature of Canada intituled the Statute Law Amendment (Newfoundland) Act, 13 Geo. 6 c. 6, which section relates to the extension of the Canadian citizenship laws to Newfoundland).

Power to
make further
adaptations
by Order in
Council.

3.—(1) His Majesty may by Order in Council make such further adaptations in any Act of the Parliament of the United Kingdom passed before this Act, or in any instrument having effect under any such Act, as appear to him necessary in consequence of Newfoundland's becoming part of Canada.

(2) A draft of any Order in Council made under this section shall be laid before Parliament.

(3) Any Order in Council made under this section may be varied or revoked by a subsequent Order in Council.

Short title.

4. This Act may be cited as the Newfoundland (Consequential Provisions) Act, 1950.

SCHEDULE

ENACTMENTS REPEALED

PART I

Session and Chapter	Short Title	Extent of Repeal
2 & 3 Geo. 6. c. 70.	The Ships and Aircraft (Transfer Restriction) Act, 1939.	In section four, in paragraph (a) of subsection (2), the words "in Newfoundland or". In section eleven, in paragraph (c) of subsection (1), the words "Newfoundland and".
2 & 3 Geo. 6. c. 89.	The Trading with the Enemy Act, 1939.	In section fourteen, in paragraph (b), the words "Newfoundland or".
11 & 12 Geo. 6. c. 44.	The Merchant Shipping Act, 1948.	In section nine, in subsection (1), the word "Newfoundland".

PART II

29 & 30 Vict. c. 109.	The Naval Discipline Act, 1866.	In section ninety B, in subsection (2), the words "and Newfoundland".
57 & 58 Vict. c. 17.	The Colonial Officers (Leave of Absence) Act, 1894.	In the Schedule, the word "Newfoundland".
58 & 59 Vict. c. 34.	The Colonial Boundaries Act, 1895.	In the Schedule, the word "Newfoundland".
6 Edw. 7. c. 11	The Reserve Forces Act, 1906.	In the Schedule, the word "Newfoundland".
8 Edw. 7. c. 51	The Appellate Jurisdiction Act, 1908.	In the Schedule, the word "Newfoundland".
1 & 2 Geo. 5. c. 46.	The Copyright Act, 1911	In section thirty-five, in subsection (1), in the definition of "self-governing dominion", the words "and Newfoundland".
1 & 2 Geo. 5. c. 47.	The Naval Discipline (Dominion Naval Forces) Act, 1911.	In section one, in subsection (3), the words "and Newfoundland".
1 & 2 Geo. 5. c. 57.	The Maritime Conventions Act, 1911.	In section nine, in subsection (1), the words "and Newfoundland".
2 & 3 Geo. 5. c. 10.	The Seal Fisheries (North Pacific) Act, 1912.	In section five, in subsection (2), the words "and Newfoundland".
5 & 6 Geo. 5. c. 57.	The Prize Courts Act, 1915.	In section four, in subsection (1), the words "or Newfoundland".
10 & 11 Geo. 5. c. 3.	The Coinage Act, 1920 ...	In section three, in subsection (2), the words "and Newfoundland".

SCHEDULE
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Session and Chapter	Short Title	Extent of Repeal
10 & 11 Geo. 5. c. 75.	The Official Secrets Act, 1920.	In section eleven, in subsection (1), the word "Newfoundland".
12 & 13 Geo. 5. c. 21.	The Treaties of Washington Act, 1922.	In section five, in subsection (1), the words "and Newfoundland".
13 & 14 Geo. 5. c. 14.	The Finance Act, 1923 ...	In section nineteen, in subsection (4), the words "or Newfoundland".
15 & 16 Geo. 5. c. 42.	The Merchant Shipping (International Labour Convention) Act, 1925.	In the Second Schedule, the word "Newfoundland".
16 & 17 Geo. 5. c. 40.	The Indian and Colonial Divorce Jurisdiction Act, 1926.	In section two, in subsection (2), the word "Newfoundland".
18 & 19 Geo. 5. c. 35.	The Easter Act, 1928 ...	In the Schedule, the word "Newfoundland".
23 & 24 Geo. 5. c. 6.	The Visiting Forces (British Commonwealth) Act, 1933.	In section three, in subsection (1), the words "or Newfoundland". In section four, in subsection (1), the words "or Newfoundland". In section eight, in subsection (1), in the definition of "visiting force", the words "or Newfoundland".
2 & 3 Geo. 6. c. 62.	The Emergency Powers (Defence) Act, 1939.	In section ten, in subsection (1), the words "except Newfoundland".
2 & 3 Geo. 6. c. 70.	The Ships and Aircraft (Transfer Restriction) Act, 1939.	In section twelve, in the definition of "Dominion", the words "except Newfoundland".
3 & 4 Geo. 6. c. 21.	The Treachery Act, 1940	In section five, in subsection (1), in the definition of "Dominion", the words "except Newfoundland".
10 & 11 Geo. 6. c. 33.	The Foreign Marriage Act, 1947.	In section three, in subsection (3), the words "except Newfoundland".
11 & 12 Geo. 6. c. 44.	The Merchant Shipping Act, 1948.	In section six, in subsection (2), the words "other than Newfoundland".
11 & 12 Geo. 6. c. 56.	The British Nationality Act, 1948.	In section one, in subsection (3), the word "Newfoundland".

Table of Statutes referred to in this Act

Short title	Session and Chapter
Statute of Westminster, 1931	22 & 23 Geo. 5. c. 4.
Colonial Stock Act, 1934	24 & 25 Geo. 5. c. 47.
Ships and Aircraft (Transfer Restriction) Act, 1939	2 & 3 Geo. 6. c. 70.
Trading with the Enemy Act, 1939	2 & 3 Geo. 6. c. 89.
Merchant Shipping Act, 1948	11 & 12 Geo. 6. c. 44.
British Nationality Act, 1948... ..	11 & 12 Geo. 6. c. 56.
British North America Act, 1949	12, 13 & 14 Geo. 6. c. 22.

CHAPTER 6

Statute Law Revision Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. Enactments in schedules repealed.
2. Application of repealed enactments in local courts.
3. Omissions.
4. Church Assembly Measures.
5. Provisions as to Northern Ireland.
6. Short title.

SCHEDULES:

First Schedule.—Enactments of the Parliaments of England, Great Britain and the United Kingdom.

Second Schedule.—Enactments of the Irish Parliament passed before the commencement of the Union with Ireland Act, 1800.

Third Schedule.—Enactments contained in Church Assembly Measures.

An Act for further promoting the Revision of the Statute Law by repealing Enactments which have ceased to be in force or have become unnecessary and for facilitating the publication of Revised Editions of the Statutes.

[23rd May 1950.]

WHEREAS it is expedient that certain enactments which may be regarded as spent, or have ceased to be in force otherwise than by express specific repeal, or have, by lapse of time or otherwise, become unnecessary, should be expressly and specifically repealed: